

Court No. - 3

Case :- WRIT - C No. - 7316 of 2024

Petitioner :- Babu Ram

Respondent :- U.P. Power Corporation Ltd Thru.
Chairman And 2 Others

Counsel for Petitioner :- Piyush Mishra

Counsel for Respondent :- Neerav Chitravanshi, Aprajita
Bansal

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Brij Raj Singh, J.

Heard learned counsel for the petitioner and Ms. Aprajita Bansal, learned counsel appearing for the respondents/ U.P. Power Corporation Limited.

This petition has been filed with the following main prayers:-

"(i) issue a writ, order or direction in the nature of Mandamus commanding the respondents to restore/re-connect the electricity connection bearing No.4729478303 and installed new electricity meter in the premises of petitioner.

(ii) issue a writ, order or direction in the nature of Mandamus commanding the respondents to waive of electricity bill of Rs.44117.58 which has been required to be deposited, despite of fact that petitioner has not use electricity since 6.8.2016 due to destroyed of electricity meter as well as connection in incident of fire and loot, committed by some antisocial persons."

Ms. Aprajita Bansal, learned counsel appearing for U.P. Power Corporation Limited has pointed out that there is billing dispute which can be suitably dealt with under Clause 6.5 of the Electricity Supply Code by the Executive Engineer concerned. With regard to re-connection of the disconnected electricity, it has been

submitted that petitioner owes several thousands as arrears and therefore, re-connection cannot be done.

This writ petition is disposed of with the direction to the petitioner to file an application under Clause 6.5 of the Electricity Supply Code before the Executive Engineer within one week and deposit Rs.20,000/- for sympathetic consideration of his claim for re-connection of electricity during the pendency of the application under Clause 6.5 of the Electricity Supply Code. If such deposit of Rs.20,000/- is made, the Executive Engineer shall ensure that the electricity is reconnected on fulfillment of formalities as required under the Code and he shall consider the application of the petitioner under Clause 6.5 of the Electricity Supply Code and pass appropriate order in accordance with law within six weeks thereafter.

(Brij Raj Singh, J.) (Sangeeta Chandra,J.)

Order Date :- 28.8.2024

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